

## 25STCV14042 25STCV14042

County: los-angeles

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Department: 516

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Case Number: 25STCV14042 Hearing Date: July 8, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 8, 2026

Case Name: Raju v. Felahy Employment

Lawyers, APC, et al.

Case

No.: 25STCV14042

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Felahy

Employment Lawyers APC, Felahy Trial Lawyers APC, and Allen Felahy

Responding Party: Plaintiff Kariavandan Raju

Tentative

Ruling: Defendants Felahy

Employment Lawyers APC, Felahy Trial Lawyers APC, and Allen Felahy's demurrer is overruled in part and sustained in part.

Defendants

Felahy Employment Lawyers APC, Felahy Trial Lawyers APC, and Allen Felahy's motion to strike is granted.

Plaintiff Kariavandan

Raju ("Plaintiff") filed this action against Defendants Felahy Employment Lawyers APC, Felahy Trial Group APC, Felahy Trial Lawyers APC, Allen Felahy, and Does 1 through 20. Plaintiff filed a First-Amended Complaint against Defendants Felahy Employment Lawyers APC, Felahy Trial Lawyers APC, Allen Felahy, and Does 1 through 20.

On October

2, 2025, the Court sustained Defendants Felahy Employment Lawyers APC, Felahy Trial Lawyers APC, and Allen Felahy's (collectively "Defendants") demurrer to Plaintiff's cause of action for legal malpractice.

On October

24, 2025, Plaintiff filed a Second Amended Complaint ("SAC") against Defendants for: (1) professional negligence (legal malpractice); and (2) breach of contract.

On February

24, 2026, the Court sustained the demurrer as to the first cause of action with leave to amend.

On March

20, 2026, Plaintiff filed a Third Amended Complaint ("TAC"). The TAC alleges three causes of action for: (1) professional negligence; (2) breach of contract; and (3) conversion.

Defendants

demur to Plaintiff's first and third causes of action and move to strike portions of Plaintiff's TAC. Plaintiff opposes.

Request for Judicial Notice

Defendants

request the Court to take judicial notice of two court documents from Plaintiff's underlying case in Kariavandan Raju v. County of Los Angeles, et. al., LASC Case number BC615598. The Court takes judicial notice of the Entry of Judgment entered on January 29, 2025, and the Amended Judgment entered on February 4, 2025, pursuant to Evidence Code section 452, subdivision (d).

## Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “ ‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . . ’ ” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

## Analysis

### Meet and Confer

Pursuant to Code of Civil Procedure section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd.

(a.)

Defendants contend that the parties met and conferred by emailing and mailing a meet and confer letter. (Niedbalski Decl., ¶ 2.) Thus, the parties did not fulfill their meet and confer obligations. In the interest of judicial efficiency, the Court will address the merits of Defendants' motions.

Demurrer

Defendants

demur to Plaintiff's first and third causes of action on the grounds that the TAC is uncertain, and that Plaintiff fails to allege sufficient facts to constitute a cause of action.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means "ambiguous and unintelligible." (Ibid.) However, demurrers for uncertainty will not be sustained unless "the pleading is so incomprehensi[ve] that a defendant could not reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3.)

Defendants

contend that Plaintiff's TAC is uncertain. However, looking at the TAC as a whole, it is not incomprehensible. The TAC alleges sufficient facts for Defendants to respond.

Thus, the

Court overrules Defendant's demurrer on grounds of uncertainty.

Failure to State a Cause of  
Action

First

Cause of Action – Professional Negligence

“The

elements of a claim for professional negligence are: “(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence.” (Paul v. Patton (2015) 235 Cal.App.4th 1088, 1095.)

“While negligence is ordinarily a question of fact, the existence of a duty is generally a question of law that may be addressed by demurrer.” (Ibid.)

“To show damages proximately caused by the breach, the plaintiff must allege facts establishing that, ‘but for the alleged malpractice, it is more likely than not the plaintiff would have obtained a more favorable result.’ [Citations.]” (Shopoff & Cavallo LLP v. Hyon (2008) 167 Cal.App.4th 1489, 1509 (Shopoff ).)

Defendants

argue that Plaintiff does not allege any breach of causation to allege a viable cause of action against Defendants. “[T]he plaintiff need not prove causation with absolute certainty. Rather, the plaintiff need only “‘introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result.’” (Viner v. Sweet (2003) 30 Cal.4th 1232, 1243.)

The TAC

alleges that the dispute for Plaintiff's cause of action is “from Defendants' unauthorized waiver of Plaintiff's statutory interest rights, direction of payment to themselves while still counsel of record, and retention of disputed proceeds without a lawful accounting or trust segregation.” (TAC, ¶ 25.) Moreover, Plaintiff alleges that Defendant was responsible for:

(a) advising Plaintiff concerning post-judgment rights, including the statutory right to interest under Code of Civil Procedure section 685.010;

(b) communicating all material terms of any stipulation or payment arrangement affecting satisfaction of the judgment;

(c) obtaining Plaintiff's express authorization before waiving or impairing any substantive right or directing payment of Plaintiff's recovery to Defendants;

(d) providing a sufficient accounting  
of any claimed fee entitlement; and

(e) safeguarding disputed funds and  
promptly distributing any undisputed amount Plaintiff was entitled to receive.

(TAC, ¶ 26 (a)-(e).)

Plaintiff

argues that he has alleged sufficient facts to survive demurrer because Defendants acted beyond their scope. “An attorney is not authorized, however, merely by virtue of his retention in litigation, to ‘impair the client’s substantial rights or the cause of action itself.’” (Blanton v. Womancare, Inc. (1985) 38 Cal.3d 396, 403.) The TAC alleges that Plaintiff did not authorize the execution of the stipulation or waive the statutory post-judgment interest in the execution of the stipulation. (TAC, ¶ 27.) Finally, the TAC also alleges that had not Defendants waived statutory post-judgment interest, Plaintiff would have been entitled to interest fees as the prevailing party in the underlying action. (TAC, ¶ 28; Id., Ex. 2.) At this stage of the proceedings, Plaintiff has alleged sufficient facts to survive the demurrer stage.

Thus, the

demurrer is overruled as to the first cause of action for professional negligence.

Third Cause of Action – Conversion

“A cause of

action for conversion requires allegations of plaintiff’s ownership or right to possession of property; defendant’s wrongful act toward or disposition of the property, interfering with plaintiff’s possession; and damage to plaintiff.

[Citation.] Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment.

[Citation.]” (Sanowicz v. Bacal (2015) 234 Cal.App.4th 1027, 1042.) “Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious.” (Burlesci v. Petersen (1998) 68 Cal.App.4th 1062, 1065.)

Plaintiff

alleges that the wrongful conduct was that Defendants directed County of Los Angeles to issue a check payable to Defendants in the amount "\$1,310,831.64, including at least \$841,184.61 that belonged to Plaintiff, while failing to leave any disputed portion in trust." (TAC, ¶ 41.) However, the TAC lacks allegations to support Plaintiff's cause of action for conversion. Plaintiff relies on several case citations and conclusory allegations in lieu of factual allegations to support his cause of action. The opposition attempts to add additional facts; however, this is outside the four corners of the operative pleading.

Thus, the

demurrer is sustained as to the third cause of action for conversion.

Motion

to Strike

Defendants

move to strike Plaintiff's third cause of action for conversion in its entirety and the allegations regarding punitive damages in relation to Plaintiff's claim for conversion.

The motion

to strike Plaintiff's third cause of action and allegations regarding punitive damages is granted. On February 24, 2026, the Court granted leave to amend in a limited scope as to the first cause of action, which was the subject of the demurrer. (See February 24, 2026, Minute Order.)

"It is the

rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. [Citation.] "The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.'" (Community Water Coalition v. Santa Cruz County Local Agency Formation Com. (2011) 200 Cal.App.4th 1317, 1329, as modified on denial of reh'g (Dec. 9, 2011) (citation omitted).)

Plaintiff

cites *Haigler v. Donnelly* (1941) 18 Cal.2d 674, but *Haigler* does not address the present subject of the motion to strike. The issue presented before the Court is that Plaintiff was granted leave to amend his first cause of action of the SAC and the subject of Defendants' demurrer, but in addition to the amendment of the first cause of action Plaintiff added a third cause of action. Plaintiff also cites to *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, but the facts in this case are not analogous to Plaintiff's case. In *Patrick*, the plaintiff added a new cause of action for declaratory relief after obtaining leave to amend following a demurrer. (*Id.* at p. 1015.) The court in *Patrick* reasoned that including the cause of action addressed the defects raised by the court regarding the plaintiff's standing as a beneficial shareholder to assert derivative claims. (*Id.* at p. 1014-1016.) Moreover, the demurrer sustained in *Patrick* was for failure to join indispensable parties. (*Id.* at p. 1015.) Thus, *Haigler* is inapplicable.

Plaintiff

attempts to argue that the amendment should be allowed because "California law favors liberal amendment. Where an amendment rests on the same operative facts and causes no prejudice, courts allow new legal theories to be pleaded against existing parties." (*Opp.*, 4:1-4.) While the Court favors liberal amendments, Plaintiff must follow the proper procedural measures. On October 2, 2025, the Court denied Plaintiff's oral motion and directed Plaintiff to "follow appropriate procedures." (October 2, 2025, Minute Order.)

Thus, the

Court grants Defendants' motion to strike in its entirety.

Leave

to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable



possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff

will not be granted leave to amend because such leave would be futile.

Conclusion

The

Court overrules Defendants' demurrer as to the first cause of action.

The Court

sustains Defendant's demurrer as to the third cause of action.

The Court

grants Defendants' motion to strike in its entirety.

Leave to

amend is denied.